No 5. Shanghai Aug 28th 1874

Your Excellency,

Referring to my No. 2, I now by to state that on the 11th instant H.B.M.s Gunboat "Hsien-kan" arrived at Ewoy from Sialiao, and her commander, upon hearing of my arrest by the U.S. Consul, offered to land his Marines and retake me by force from the hands of the U.S. Authorities and bring me onboard of his vessel. Although deeply appreciating the motives of this officer, I discouraged him ~~him~~ from giving effect to his plans, pointing out to him the inconveniences that must result from the conflict which his action would bring about between

the United States and Japan. I, suggested however, the advisability of himself and the Japanese Consul protesting with the U.S. Consul and the Commander of the U.S.S. "Yantic" against the violence to which I had been subjected. (enc. enclosures 1.) This was done, the acting Consul, Mr. Goheki, entering his protest in writing (enclosure No 2.), and Mr. J. his naval officer verbally with the U.S. Consul. Copies of Mr. Goheki's protest were sent to the commander of the "Yantic" and U.S. Consul (Enclosures Nos. 3 & 4).

My reason for thus acting is easily explained. Having ascertained that the U.S. Consul at Amoy had received instructions from the U.S. Consul General at Shanghai to arrest me, provided he could do so without conflicting with the Japanese authorities, I expected that these protests, by leading the consul to believe that my arrest would

be the cause of some annoyance between himself and the Japanese officials, would also induce him either to send me as soon as possible to Shanghai, in compliance with the desire I had expressed a few days previously, thus releasing himself of the responsibility of finally disposing of me in court, or else to release altogether, on the ground that there was no charge against me, and the arrest was illegal.

I was not deceived in my expectations. On the day after the protest was made I was directed to go to court (enclosure No 5.) where I was told that I would have to leave for Shanghai during the afternoon. Doubtless your Excellency will perceive the difference between the tone of the warrant issued for my arrest — (enclosure No 1.) and that of the paper ordering me to appear before the court

(enclosure No. 5).

On taking me off to the steamer the consul expressed the desire; which was shared by the commander of the "Yaeshie" to escort me there, not as a prisoner, but as a person for whom they entertained the highest regards, and they did so. When we arrived at the steamer, we found the same crowded with a number of persons who had gathered to bid me Good-bye. Every one of any standing in Amoy was there.

We made the trip from Amoy to Shanghai in three days, arriving at the latter place on Sunday the 16th. On the way up I had been placed for form's sake in charge of the acting clerk of the U.S. Consulate at Amoy. As this man was endeavouring to make arrangements to have me located ashore, the constable of the U.S. Consulate General came

aboard the steamer and, on ascertaining who I was, came and communicated to me the contents of a paper, of which he left no copy with me, and which so far as I can recollect, read somewhat as follows:—

To the Marshall of the U.S. Consulate General.

Shanghai (Date I have forgotten)

On the arrival of General de Leud-e in Shanghai you will inform that instructions have been received from the Minister to release him from arrest, and that there is no reason to hold him for trial.

On the 18th following no copy of this paper had been sent to me by the Consul General. I was anxious to have it, and yet I did not wish to ask for it in my quality of (Japanese) U.S. citizen, and in such as, in my quality of Japanese officer, I was

not justified in asking for it directly, I advised Mr Shimajawa to apply for it. He did so (enclosure No 6), and enclosure No 7 is the Consul General's reply. Of course Mr Shimajawa was obliged to write again to the Consul General (enclosure No 8.) who promptly answered (enclosure No 9) and the correspondence between the two officers came to a close.

On the 20th the U.S. Consul General called upon me unofficially at my residence and spent a half hour with me. He was exceedingly pleasant and amiable. But not a word was said by either of us on the subject of any arrest and liberation. He asked me when I would leave Shanghai, and where I would go. I replied, that I had not decided. He also asked me if the Japanese ministers had yet left for the north, saying that he had heard he had. I told him that he had not. He

then took leave of me, without sending his card to Mr Okubo. It is true that not having the honor of an acquaintance with Mr Okubo, and that Gentleman not being an Ambassador, the Consul General was not obliged to call upon him. Since my arrival at Shanghai I have learned, that the U.S. Consul at Amoy, having applied to the Commander of the U.S. "Monocacy" for aid in arresting Capt Cassell and Mr Wasson, that officer refused to comply with the request. The matter was referred to the Admiral, who said that there was no ground for arresting any Americans connected with Japanese expedition to Formosa; but that they would be notified, that by connecting themselves with the Japanese, they must lose all claim to American protection. This notification was given by Commander Kautz of the

the U.S. "Monocacy", while the Consul at Amoy issued a proclamation (enclosure No 10) a copy of which he sent to the U.S. Minister at Peking through the Consul General at Shanghai. While this was going on, Mr Bingham was probably corresponding with U.S. officers in China, probably Mr Williams and Mr Seward, both officers being influenced by his statements, one of which was that Capt Cassell and Mr Warren, by holding commissions in the U.S. service, the one as naval, and the other as military officer, and taking advantage of a leave of absence granted them by the United States to join the Japanese service without the the express consent of their government, should be arrested. In acknowledging the receipt of a copy of the proclamation by the U.S. Consul at Amoy, Mr Williams

entered there views, and directed the Consul to issue another proclamation, which was done accordingly (Enclosure No 11)

On receipt of this last mentioned dispatch the U.S. Consul at Amoy who is very kindly disposed towards the Japanese, probably being annoyed at having incurred the blame of the Minister, sent the latter a copy of his new proclamation, and asked what he should do in case I should come to Amoy. He sent this despatch through the Consul General, who, I am told, forwarded it to the Minister with an endorsement to the effect that I should be arrested also, on the ground that, although no longer in active service, I still kept the rank I had held while in actual service in the army of the United States, and that therefore I had no right to join the Japanese expedition

without the special permission of my government. While a reply to this despatch was being looked for, I arrived in Amoy. The U.S. consul there at once telegraphed to the Consul General for instructions, and the latter, although he had not yet heard from the minister but feeling sure that his reply would be favorable to his own views, without waiting answered: "Arrest De Gunde, if you can do so without conflicting with the Japanese authorities." The Consul at Amoy thinking that this reply was sent to him in conformity with the instructions he had asked for from the Minister, then arrested me.

The day after I left Amoy for Shanghai the reply from the U.S. Minister at Peking, condemning the Consul Generals views was received by the latter, who immediately ordered my release.

As I was about to leave Amoy for Shanghai the U.S. Consul at the former place invited me to take copies of any despatches in his consulate which I thought might be of use in case I should be tried before a court at Shanghai. I replied that I had nothing to say to any court, except that I considered my arrest to be illegal, and that I protested against it. Yet, as I might, in connection with my case, procure from the consulate papers that would be of use to the government of Japan in settling the Formosa question I would accept his offer. I then asked for the copy of a despatch received by me as consul for the United States at Amoy, in June 1867, from the General and Taotai of Formosa, wherein they stated that Formosa was not a part of the Chinese

Empire. The searches made for this document resulted in the discovery that the book in which it was filed had disappeared from the Consulate. The interpreter claimed that it had never been received; but by referring to the "Register of official Letters received" (an extract from which, certified by the Consul, is sent herewith; see Enclosure No 12.) I proved that it had. The interpreter then accused me of having stolen it; but the Consul, very properly imposing silence on him, told him that, without inquiring into the origin of the loss of the despatch, he would hold him (the interpreter) responsible for it. I then remembered, that in replying to the lost despatch I had quoted the very portions of it that I wanted to copy; and on referring to the book in which the letters sent

were recorded, I found the letter, copy of which I sent you in my No I also procured official copies of other documents, one copy of which I have already sent you with my despatch No . I send you herewith copies of the documents of which copies have not been forwarded before, together with receipts for the fees paid the U.S. Consulate for authenticating and copying the same (Enclosures Nos 13 & 14).

I have thus dwelt upon the circumstances of my arrest, because the more I think of it the more I believe that the whole affair was concerted between Mr Bringham and Mr Seward.

You are aware that no opposition has been made by Mr Seward to Americans remaining in the service of the Chinese whilst the latter were preparing for war against Japan, Colonel Forrester

of New York, having actually been engaged, a few days ago, to raise and organize a regiment, and Mr Pike, another American citizen, placed in command of the "Leven", a small gun-boat recently purchased from the British Government. But Mr Bingham did all he could to prevent me from aiding Japan in sending an expedition to Formosa. My arrest was not made at the instigation of the Chinese, who wrote but one letter to the U.S. Consul, wherein allusion was made to me (inclosure No 15). This letter was dated June 9th, and subsequently the Viceroy informed the Consuls that he did not wish that the Americans should be arrested for the time being. As a proof that the Chinese did not wish me any harm, I beg to refer you to the telegrams which I received from them in June last, and which I informed

you of at the time (see enclosures Nos 16 & 17). After my arrest the Chinese authorities sent for my servant Dinah and asked him whether Lin-kiew, the interpeter of the U.S. Consulate, had called upon me, he probably having been notified to request from me an answer to the proposition which he had been instructed to make to me. My servant replied that the proposition sent to me by Lin-kiew being, de facto, a request that I should betray Japan, were considered by me as an insult, and therefore I had made no reply to the same and could not receive Lin-kiew if he should call upon me. But that I was not hostile to China, and if the latter wanted to deal fairly with Japan in settling the Formosa question I would aid her, without reward or hope of reward

to promote the ends of justice; and that I had been commissioned by Japan to come to Amoy for that purpose. The Officer replied that the provincial authorities had had nothing to do with my arrest.

The next day Lin-kien called upon me. He was refused admittance by my host, who told him that, after the insulting offers he had made me, I could not see him.

Notwithstanding all these facts, which tend to show that the local authorities had nothing to do with my arrest, Mr Bingham and Mr Seward were taking an undue interest in my movements. Mr Seward stretched the General instruction of the minister in such a manner as to cause my arrest to be effected in the name of the minister; and after I had left Yokohama Mr Bingham said to

Mr Jones: "I understand that General Le Gendre is going to China. If he goes there will be be snubbed; and if he goes to Formosa he will be murdered by the Chinese." How did Mr Bingham hear of these things? Who wrote him about them?

If the Minister and Mr Seward have been guilty in this case of any ill practice, I am sure that, if the Japanese Government will complain of them to the Government of the United States, the latter will not indorse their actions. As all these matters have to be submitted to the U.S. Minister at Peking by Mr Okubo before they are brought in detail to the notice of the American Government, Mr Okubo suggested that I should be absent from Peking, while the matter was being discussed there, and that I should lay over no steamer here, so as to join him in

Peking one week after his arrival
there. He left on the 22nd inst, and
I purpose leaving tomorrow morning
at daylight, in compliance with
his recommendations.

I have the honor to be
Your Excellency's
Most Obedient Humble Servant

Thos. F. Wade

His Excellency
Okuma Shigenobu,
Minister of Finance,
&c &c &c,

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Enclosure No 1.

In the Consular Court of the United States for the district of Amoy, August 6th. 1874.

The United States

vs

C. W. Le Gendre

To

St. J. H. Edwards
George Davis Esq.
Acting U. S. Marshals

You are hereby commanded to arrest forthwith and bring before me C. W. LeGendre if found within this Consular District.

[L.S.] (signed) J. J. Henderson
U.S. Consul

[L.S.] (signed) W. H. Medhurst
H. M. Consul,
Amoy.

True Copy

Enclosure No 2.

Copy. H. I. J. M. Consulate.
Amoy, August 11th, 1894.

Sir:

I have been informed that the Hon: Chas. W. Le Gendre, a citizen of the United States, who was engaged by the Japanese Government through the United States Minister in Japan, in December, 1872, in conformity with the terms of Article X of the treaty of 1858 between Japan and the United States, and now H. I. J. M's Special Commissioner in China, was, on the 6th day of August, 1894, forcibly taken before your court by U. S. Marines landed for that purpose from the

U. S. ship "Yantic", upon unknown charges, and in virtue of a warrant issued by you, while he was in Amoy on his way to Foochow and Shanghai on business connected with his mission; that, on the day following, the Hon. Chas. W. Le Gendre was, against his will, again brought before Your Court; that he is now forcibly detained by you at this port and rendered unable to discharge the duties entrusted to him by His Imperial Japanese Majesty; that he has already notified you that he yielded only to force which he was unable to resist in suffering the violence and detention to which he is now being subjected in Amoy; and that he has strongly protested against these proceedings.

Now, therefore, I, Go Sheki, His Imperial Japanese Majesty's Acting Consul at Amoy, find it my duty to myself protest, which I hereby do, in the most formal and solemn manner, against this act of violence towards H. I. M's Special Commissioner, as being a manifest infraction of the right of nations, and contrary to the privileges and immunities which public commissioners enjoy in Civilized Countries.

I have the honor to be,
Sir,
Your Obedient, Humble Servant
(signed) Go Sheki,
H. I. J. M. Acting Consul

J. J. Henderson Esq.
U. S. Consul,
Amoy.

Copy. H. I. J. M. Consulate,
Amoy, August 11th, 1894.

Sir:

I beg privilege to hand you the copy of a protest which I have this day entered at the United States Consulate against the arrest of the Hon: Chas. W. Le Gendre, H. I. J. M's Special Commissioner, in virtue of a warrant issued by the U. S. Consul at this port, and which You countenanced, as stated in said protest, probably not knowing the position occupied by the gentleman against whom the

said warrant was directed, and the privileges attached to it.

I have the honor to be
Sir,
Your Obedient Humble Servant,
(Signed) Go Sheki
H.I.J.M. Acting Consul

To the
Commander of the
U.S.S. 'Yantic'
Amoy.

Enclosure No 4.

Copy. H. I. J. M. Consulate.
Amoy, August 11th, 1874.

Sir.

I beg privilege to hand you the copy of a protest which I have this day entered at the United States Consulate against the arrest of the Steam. Chas. W. Le Gendre, H. I. J. M's Special Commissioner, in virtue of a warrant issued by the U.S. Consul at this port, and which, he being at the time the guest of an English subject, you countersigned, probably not knowing the position occupied by the gentleman

against whom the said warrant was directed, and the privileges attached to it.

I have the honor to be,
Sir,
Your Obedient Humble Servant,
(Signed) Go. Sheri
H. B. M. Acting Consul.

W. H. Pedder Esq.
H. B. M. Consul
Amoy.

Enclosure No 5

Copy

United States Consulate.
Amoy. Aug 18 1874

Genel. C. W. Le Gendre

Sir:-

You are hereby required to be in attendance at the U. S. Consular Court at half past 2 o'clock this day.

(signed) J. J. Henderson
U.S. Consul.

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[from Center for Asian Historical Records]
[https://www.jacar.go.jp]

copy.

H. B. J. M. Consulate General
Shanghai, August 15th. 1874.

Sir,

You have doubtless been informed that General Chas. W. de Long, a citizen of the United States and late U. S. Consul at Amoy, who was engaged by the Japanese Government through the United States minister in Japan, in December, 1873, in conformity with the terms of Article X of the Treaty of 1858 between Japan and the United States, to serve in the Department of Foreign Affairs at Tokei as an officer of the second rank, who lately came to China as H. B. J. M's Special Commissioner, was, on the 6th day of August, 1874, forcibly taken before the U. S. Consular Court at Amoy by U. S. Marines landed for that

purpose from the U. S. S. "Gettis", upon suspicious charges, and in virtue of a warrant issued by the U.S. Consul at Amoy, while he was in Amoy on his way to Foochow and Shanghai on business connected with his mission; that on the day following, the Hon. Chas. W. de Leudre was, against his will, again brought before the Consular Court at Amoy, where, for the first time, he was verbally made acquainted with the charges made against him; that he was forcibly detained at Amoy by the U.S. Consul, and was rendered unable to discharge the duties entrusted to him by His Imperial Japanese Majesty; that, on both occasions, he notified the U.S. Consul that he yielded only to force which he was unable to resist, in suffering the violence and detention to which he was subjected; that he strongly protested against these proceedings with the U.S. Consul at Amoy; that Mr. Go Sheki, H.I.J.M's Acting Consul at Amoy,

found it his duty to himself to protest, in the most formal and solemn manner, against these acts of violence towards H.I.M's Special Commissioner, as being a manifest infraction of the rights of nations and contrary to the privileges and immunities which Commissioners enjoy in civilized countries, although such offices may not be always vested with the character of public ministers; that, on the 13th day of August, 1874, the U. S. Consul at Amoy informed Mr. Go Sheki that Mr. de Leudre was arrested by him in the U.S. Consulate upon a charge of advising, aiding and abetting an expedition in hostility to the Government of China, in violation of the laws of the United States and their treaty with China; and that he had informed Mr. de Leudre that, in so doing, he was acting under instructions from the U. S. Legation at Peking.

In the afternoon of the 13th instant,

the Hon. Chargé de Legation de Japan sent to Shanghai in charge of the Acting Clerk of the U.S. Consular Court of Amoy, and upon his arrival at this port, a paper purporting to come from you, was read to him by the Marshal of the U.S. Consulate General, from which he was given to understand that he has been released from arrest by order of the minister, and that there would be no occasion to hold him for trial on the charge preferred against him by the U.S. Consul at Amoy.

The circumstances of the arrest and detention of General de Geridias being now the subject of correspondence between the governments interested in the affair, I beg that you will have the goodness to furnish me, for the information of H.I.J.M's Government, with a copy of the paper read, by your order, to him on his arrival at Shanghai, as stated above, if possible, before the departure of the mail for Japan.

I take this opportunity to renew the

assurance of the high consideration with which I subscribe myself,

Sir,

Your most Obedient, Humble Servant,

(Signed) E. Shinagawa

H.I.J.M. Consul General.

Geo. F. Seward Esqr.

U.S. Consul General,

Shanghai.

Copy Enclosure No 7

7464 United States Consulate General.
Shanghai, 19th August, 1874.

E. Shimagawa Esquire,
H.I.J.M's Consul General
Shanghai.

Sir:-

I have received your letter of yesterday. As the matter of the the arrest of General de Genove is stated by you to be the subject of correspondence between our respective governments, I will transmit a copy of the order upon which he was released to Washington.

I have the honor to be,
Sir;
Your Obedient Servant,
Geo. F. Seward
Consul General.

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Enclosure No 8. 105

H. I. J. M. Consulate General
Shanghai, August 19th 1874.

Sir: -

Your despatch of today has been received. From it I understand that you are unwilling to furnish me, for the information of H. I. J. M's government, with a copy of the order on which General Le Gendre was released, but that you will transmit the same to Washington. Before I inform our minister at Peking of your decision, I have to request whether you will have any objection to let me have a copy for this use.

I am, Sir,
Your Obedient Servant,
Signed E. Shimazawa
H. I. J. M's Consul General

Geo. F. Seward Esq.
U. S. Consul General,
Shanghai -

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Copy. Enclosure No 9. 107

No. 7469. U. S. Consulate General
Shanghai, Aug 19th, 1874.

E. Shinagawa Esq
H. I. Jap M's Consul General
Shanghai.

Sir:

I have had the honor to receive your dispatch of this date. And as I learn from it that you are referring the case of Mr. Le Gendre to your minister at Peking, I have to say that in due course the order of release referred to will be transmitted to the United States Legation in that city.

I am Sir,
Your Obedient Servant,
(Signed) Geo. F. Seward

United States Consulate Amoy & the Dependencies thereof.

JUNE, 6th 1874.

NOTIFICATION.

Whereas, the Chinese Authorities of the FOH-KIEN Province have informed me that a Japanese armed force has invaded the island of Formosa; that that island is a part of the Chinese Empire, and have requested me to prevent American citizens from taking part in the enterprise; also that they have demanded of the Japanese forces its immediate evacuation: and

Whereas, citizens of the United States in China are under the protection, and subject to the jurisdiction and laws of their own country,

Now, therefore I, the undersigned Consul, charged with the care of American interests and the execution of the laws of the United States and treaty obligations with China in the island of Formosa, HEREBY NOTIFY and COMMAND all citizens of the United States to at once withdraw and hereafter abstain from all enterprises unfriendly to the Chinese Government, and to avoid all acts which are inconsistent with the said laws and treaty obligations.

Any citizen of the United States who shall refuse to comply with, or offend against the provisions of this notification, shall forfeit the protection of the American Government.

J. J. HENDERSON,
United States Consul.

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Enclosure No. 11



United States Consulate Amoy and the Dependencies thereof.

JUNE 16*th*, 1874.

NOTIFICATION.

All Citizens of the UNITED STATES are hereby notified and warned to at once withdraw from the Japanese armed expedition now operating in the island of FORMOSA, and hereafter to avoid any connection with that enterprise, under penalty of arrest and trial for violation of the laws of neutrality.

J. J. HENDERSON,

United States Consul.

By instruction from Hon. S. Wells Williams,

U. S. Chargé d'Affaires Peking.

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Enclosure No 12.

Register of Official Letters and Despatches received at the U. S. Consulate at Amoy for the Quarter ending June 30th, 1867.

Name of the Writer.	No.	Place and Date of Letter	When Received	Ons what Subject	No of Enclosures.	Remarks	Amount of Postage paid on each Letter
Taotai of Formosa	45	Taiwanfoo June	June 22.	States that his subordinates had discovered the geographical position of the natives of Formosa. That it does not form a part of the Chinese Empire; and that under the treaty they are not obliged to investigate the Rover case.			
General of do.	"						

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United States Consular Service

Depositions taken for Admiralty Court

Antwerp, August 12th, 1874.

The within is a true transcript of an original entry in the Register of Vessels Letters received at the U.S. Consulate Quarter ending June 30th 1869.

(Signed) J. J. Henderson
U.S. Consul

Copy Enclosure No 13.

No 16 United States Consulate for Antwerp and the Dependencies
Consl. Antwp. Aug 18. 1874.

M. C.W. Le Gendre Esqre

Dr. to the Treasury Department, U.S.A.

To 1 scale to sundry Papers #6.

E. & O.E.

Received Payment
(Signed) J. J. Henderson
Consul U.S.A.

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copy

copy Enclosure No 14.

C. N. le Gendre Esquire &c.
To the undersigned

To Clerks fees making Copy of English
translation of despatch
from Board of Trade of
Fukkien dated 7th day
1867. 800 words @ 6.40

" " " Copy of Copy of U.S. Consuls
Chinese despatch to Board
Lin and Sawtai Woo of
Foochow. 2500 words) 23.40

" " Copy of Chinese despatch from
Board of Trade dated 14 day 7th
Month, 7th year Imy Chick. 1000 words) 8.40

" " Extract of Official letter
received in June 1867. 10 words) .20

£38.40

E. & O. E.

Amoy. August 5th 1870.

Rec'd Payment

(Sgd.) St. J. H. Edwards
A/Chief Clerk.

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Enclosure No 16

The Great Northern Telegraph
China and Japan Extension Company

Station Nagasaki.
Telegram No. 304
Given in at Nagasaki the 19/6,1874 / to 35 m p. m.

Lefevre Walsh Hall Yokohama
Linkin says can give you customs
service South China telegraph where
letter will reach you he suggests
your presence here immediately
telegraph me without signature

Stevens -

Copy Government Telegraphs.

Station Yokeo 28th June 1874

Telegram No 559

Given in at Amoy the 28/6/ 18 - 4 h 35 m p m

From Stevens

To Legendre
Walsh Hall
Yokeo

Offered appointment Sinecure
Subsidy 20000 yearly for
ten years reply

Copy. U. S. Consulate,
Amoy, Aug. 13. 1874.

I hereby certify that I have made careful and diligent search among the records of this Consulate for the original Chinese despatches from the Board of Trade at Foochow (including one dated June 3rd, 1867) and am not able to find the same.

(signed) J. J. Henderson.
Seal
U. S. Consul.

Copy. Shanghai, August 17th, 1867.

I, St. Julien Hugh Edwards, Acting Clerk of the United States Consulate at Amoy, do hereby certify that I have, on the 12th instant, been ordered by J. J. Henderson Esquire, U.S. Consul, to make a search among the records of said Consulate for the original Chinese despatches from the Chinese authorities at Foochow and Formosa to the United States Consulate at Amoy during the year 1867 (including one dated June 22nd of the same year) from the Taotai and General of Formosa recorded in the "Register of official letters and despatches "received at the United States Consulate at Amoy for the quarter ending June 30th 1867" as follows. Name of Writer "Taotai of Formosa, General of

ditto" No. "45" Place and date of "letter "Tainanfoo June" When received "June 22d" On what subject "States that his subordinates have "discovered the geographical position "of Formosa. That it does not form "part of the Chinese Empire and that "under the treaty they are not obliged "to investigate the "Rover" case"; and after a careful & diligent search I have not been able to find the same.

(signed) St. J. H. Edwards
Acting Clerk.

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cotul.

No 30. United State Consulate.
Amoy, August 13th, 1874.

G. Shiki Esquire,
Amoy.

Sir:-

I beg to acknowledge the receipt of your communication of Yesterday, in which you complain of my action in arresting Mr. C. W. Le Gendre, a citizen of the United States, who, you say, is sent to China as a special Commissioner of H. I. M. the Emperor of Japan.

Although I have received no official notice of the establishment or recognition of a

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Japanese Consulate at this port. I will state for your information that on the 6th instant, Mr. Le Gendre was arrested by me in the United States Consulate upon a charge of advising, aiding and abetting an expedition in hostility to the Government of China, in violation of the laws of the United States and their treaty with China, and was at the time informed by me that I was acting under instructions from the United States Legation at Peking.

I will add that I know of no provision in the treaty between Japan and the United States permitting citizens of the latter Country to accept or exercise any position under the former which is inconsistent with their prior obligation to obey the laws of their own country, or, so long as they remain its citizens, whereby they may deprive their government of its jurisdiction over them either in Japan or China.

The tenth article of the treaty to which you refer does not even for a lawful purpose authorize the employment by the Government of Japan of citizens of the United States to engage in her diplomatic service, and even if it did under the treaty, they would still be amenable to the laws of the United States.

However, I will forward your despatch to the Legation

for decision and instructions.

I am, Sir,

Your Obedient Servant

(Signed) J. J. Henderson

U. S. Consul.

In the Consular Court of the United States for the district of Amoy, August 6th, 1874.

The United States

vs

C. W. le Gendre

&

Sgt J. H. Edwards

George Davis Esq.

Acting U. S. Marshals.

You are hereby commanded to arrest forthwith and bring before me C. W. le Gendre if found within this Consular District.

L.S. (Signed) J. J. Henderson

U. S. Consul

L.S. (Signed) W. H. Medhurst

H. M. Consul

Amoy

True Copy.

国立公文書館 アジア歴史資料センター
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https://www.jacar.go.jp

2

Enclosure with Despatch No. 5—

Record of Arrival.

Copy

The Great Northern Telegraph Company.

Station Amoy.

Telegram No. 355—

Deposited at Hong Kong the 8th of August, 1874, 10 h. 10 m. p. m.

Legended

Care of Japanese Consulate

Amoy

Received your telegram. Informs me whether have you sent it to Nagasaki and Shanghai Tanabe leave here tomorrow for Amoy

(Signed) Ando

国立公文書館 アジア歴史資料センター
Japan Center for Asian Historical Records
https://www.jacar.go.jp

Despatch No. 5
Telegram from Mr. Parkes

No 6. Shanghai, August 28th 1870.

Your Excellency:

In reply to a communication in Japanese, dated August 21st, from Mr Okubo, I have had the honor to address a despatch to His Excellency, of which enclosure No 1 is a copy.

In connection with Mr Okubo's mission I have very little to say, except that it is to be regretted that the "Stonewall" was not sent to Amoy, as the hands of the high Commissioner would have been much strengthened thereby. The news of the reported loss of